

1 STATE OF OKLAHOMA

2 2nd Session of the 60th Legislature (2026)

3 HOUSE BILL 3444

By: Wilk

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5
6 AS INTRODUCED

7 An Act relating to transportation; authorizing county
8 commissions to assess road impact fees for certain
9 vehicles; making exception for certain vehicles;
10 requiring fees be applied to ad valorem tax; limiting
11 use of collected fees; requiring certain assessment
12 of fees; permitting increase of fees if certain
13 conditions exist; authorizing county to restrict use
14 of certain roadways; requiring individuals be
15 responsible for damage to roadways or structures;
16 amending 47 O.S. 2021, Section 14-113, which relates
17 to restricting the use of roadways; authorizing
18 county commissioners to assess certain road impact
19 fees; providing for codification; and providing an
20 effective date.

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1 a road impact fee for combinations of vehicles or loads which are
2 associated with energy production, storage, or equipment thereof and
3 are issued an overweight or oversize permit pursuant to Section 14-
4 101 et seq. of Title 47 of the Oklahoma Statutes. Energy
5 production, storage or equipment thereof subject to the provisions
6 of Section 1001 of Title 68 of the Oklahoma Statutes shall be exempt
7 from the provisions of this section. Road impact fees approved
8 through the provisions of this act shall be applied to the ad
9 valorem tax for the tax year following completion of the structure.
10 Use of road impact fees collected pursuant to this section shall be
11 limited to the maintenance, repair, or construction of roadways or
12 associated structures within the county.

13 B. The cost of the road impact fees assessed pursuant to the
14 provisions of this section shall be the target ratio funding per
15 mile pursuant to the provisions of Section 508 of Title 69 of the
16 Oklahoma Statutes. Road impact fees are permitted to be increased
17 by fifty percent (50%) when one of the following conditions exist:

- 18 1. The road is a school bus route designated by a local school;
- 19 2. The road contains a bridge that has been deemed deficient
20 according to the latest inspection report; or
- 21 3. The energy production structures within the mile section are
22 constructed within one-quarter (1/4) of one (1) mile of an occupied
23 dwelling.

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1 C. Payment of any road impact fee shall in no way be construed
2 as exempting such equipment from the authority of the county
3 commissioners to restrict use of particular roadways, nor shall it
4 exempt the owner or operators of such equipment from the
5 responsibility for damage to roadways or associated structures
6 caused by the movement of such equipment.

7 SECTION 2. AMENDATORY 47 O.S. 2021, Section 14-113, is
8 amended to read as follows:

9 Section 14-113. The Director of the Department of
10 Transportation with respect to highways on the state highway system,
11 or local authorities with respect to highways under their
12 jurisdiction, as defined in Title 69 of the Oklahoma Statutes, may
13 prohibit the operation of vehicles on any such highways, or impose
14 restrictions as to the weights of vehicles to be operated upon any
15 state or federal highway or any detour established for such
16 highways, or for any bridge located upon such highways or detours,
17 whenever any such highway, detour or bridge by reason of
18 deterioration, rain, snow or other climatic conditions will be
19 seriously damaged or destroyed unless the use of vehicles thereon is
20 prohibited or the permissible weight reduced. Such restrictions
21 shall be effective when signs giving notice thereof are erected upon
22 the highway, detour, bridge, or portion thereof affected by such
23 action, and the Department of Public Safety has been notified. The
24 purpose of this provision with respect to local authorities is to

1 give such authorities an opportunity to prevent or minimize an
2 immediate threat of serious harm or destruction to any highway,
3 detour or bridge under their jurisdiction due to rain, snow or other
4 climatic conditions. Nothing stated herein shall be construed to
5 grant local authorities the right to issue permits designed to
6 regulate the use of overweight vehicles upon highways subject to
7 their jurisdiction, and the issuance of such permits is expressly
8 prohibited. However, county commissioners shall have the authority
9 to assess road impact fees for specific oversize or overweight
10 vehicles pursuant to the provisions of Section 1 of this act.

11 SECTION 3. This act shall become effective November 1, 2026.

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